

AFFIDAVIT OF **17-06-2026**

COURT DETAILS

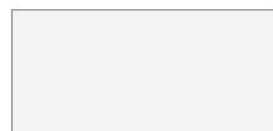
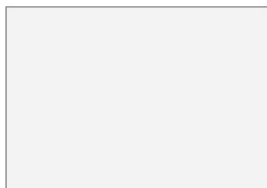
Court	Supreme Court of New South Wales
Division	Common Law
Registry	Sydney
Case number	

TITLE OF PROCEEDINGS

Plaintiff	In the matter of Insightbox Pty Ltd
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FILING DETAILS

Filed for	Insightbox Pty Ltd Plaintiff
Filed in relation to	Fact Check
Contact name and telephone	
Contact email	



AFFIDAVIT

Name

Address 490 Pitt Street, Haymarket NSW 2000

Occupation Fact Checker Supervisor

Date 17 June 2026

I affirm:

1. I am a fact checker supervisor employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. Generative artificial intelligence was not used to generate:
 - a. this affidavit or any annexure/exhibit to this affidavit prepared or created to the deponent's knowledge for the purposes of these proceedings.
 - b. other than Annexure A of Fact Checker #1 [Exhibit '', pages 3-5].
3. Fact Checker #1: [Exhibit '', pages 1-16].
4. Fact Checker #2: [Exhibit '', pages 17-33].
5. Fact Checker #3: [Exhibit '', pages 34-37].
6. Fact Checker #4: [Exhibit '', pages 38-42].
7. Fact Checker #5: [Exhibit '', pages 43-46].

Questions & Answers

8. **Do NSW Police provide a service?** Yes (unanimous).
9. **Is the investigation of crime a service NSW Police provide?** Yes (unanimous).

AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Capacity of witness

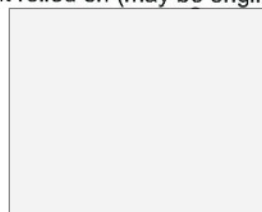
[#Justice of the Peace for affidavits #No. #Barrister #Commissioner]



And as a witness, I certify the following matters concerning the person who made this affidavit (the **deponent**):

1. #I saw the face of the deponent. [OR, delete whichever option is inapplicable]
~~#I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.¹~~
2. ~~#I have known the deponent for at least 12 months. [OR, delete whichever option is inapplicable]~~
 #I have confirmed the deponent's identity using the following identification document:

Identification document relied on (may be original or certified copy)²



Signature of witness

Note: The deponent and witness must sign each page of the affidavit. See UCPR 35.7B.

¹ [The only "special justification" for not removing a face covering is a legitimate medical reason (at April 2012).]

² ["Identification documents" include current driver licence, proof of age card, Medicare card, credit card, Centrelink pension card, Veterans Affairs entitlement card, student identity card, citizenship certificate, birth certificate, passport or see Oaths Regulation 2011 or refer to the guidelines in the NSW Department of Attorney General and Justice's "Justices of the Peace Handbook" section 2.3 "Witnessing an affidavit" at the following address: <http://www.jp.nsw.gov.au/Documents/jp%20handbook%202014.pdf>]

EXHIBIT "[]"

AFFIDAVIT OF [] 17-06-2026

COURT DETAILS

Court Supreme Court of New South Wales
Division Common Law
Registry Sydney
Case number []

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

CERTIFICATE IDENTIFYING EXHIBIT

This is the exhibit marked "[]" referred to in the affidavit of [] affirmed before me on 17th June 2026.

Signature of witness

Name of witness

Address of witness

Capacity of witness [#Justice of the peace #Solicitor #Barrister #Commissioner for affidavits #Notary public]

This is the annexure marked with the []
referred to in the Affidavit / Statutory Declaration
of []
sworn/affirmed/declared before me at []
on the day of 17 JUN 2026

One page only.
Page 1 of 45 pages

Justice []
ce

AFFIDAVIT OF **02-04-2026**

COURT DETAILS

Court Supreme Court of New South Wales
Division
Registry Sydney
Case number

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

FILING DETAILS

Filed for Insightbox Pty Ltd Plaintiff
Filed in relation to Fact Check
Contact name and telephone
Contact email

AFFIDAVIT

Name

Address 490 Pitt Street, Haymarket NSW 2000

Occupation Fact Checker

Date 2 April 2026

I affirm:

1. I am a fact checker employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. This affidavit was prepared with the assistance of a supervisor.
3. Artificial intelligence was used:
 - a. in Annexure A.
4. The answer to the question [Annexure A, pages 3-5].
5. Transcript of discussion to my answer [Annexure B, pages 6-16].

AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Capacity of witness

[#Justice of the peace #Solicitor #Barrister #Commissioner for affidavits #Notary public]

And as a witness, I certify the following matters concerning the person who made this affidavit (the deponent):

1. #I saw the face of the deponent.
 #I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.
2. #I have known the deponent for at least 12 months.
 #I have confirmed the deponent's identity using the following identification document:

 Identification document relied on (may be original or certified copy)

Signature of witness

Note: The deponent and witness must sign each page of the affidavit. See UCPR 35.7B.

The document was signed and witnessed over audio visual link in accordance
 with clause 2 of schedule 1 to the Electronic Transactions Regulation 2020





Public Interest Question

Insightbox Fact Checking

30 minutes

Do NSW Police provide a service?

The Short Answer

Sometimes — but not always. NSW Police can be considered providing a “service” but only in the *early stages* of responding to a person who reports a crime. Once police shift into investigative mode i.e., gathering evidence, deciding to charge someone or pursuing a prosecution, that action is treated as the exercise of public power. The difference matters because it determines whether a person who feels they were discriminated against can make a legal claim.

If police action doesn't qualify as a service, a discrimination claim can't get off the ground. That's why this question has been litigated in the NSW Court of Appeal and the Federal Court of Australia.

The Two Cases at the Centre of This Question

Commissioner of Police v Mohamed The Court stated that a police investigation can be considered a “service” — specifically during its initial stages — when it's provided to a person reporting a crime and claiming to be a victim. When someone walks in to report an offence, or calls for help, police are providing a form of service to that person.

The ruling only applied to where police are responding to someone seeking help within the meaning of discrimination law.

Bickle v State of Victoria Decided eleven years later in the Federal Court, stated that police investigations are generally not a “service” because they involve exercising statutory powers for the public benefit, not providing a service to an individual.

However, the Court did accept that police may provide a service in the early stages when responding to a call for help. Later steps — such as gathering evidence or deciding whether to charge someone — were not considered a service.

*this and the following 2 pages
is the annex marked 'a'
in the Affidavit of*

Affirmed before me this 2nd April 20

Are These Cases Contradictory?

This was the core question put to all three AI systems.

ChatGPT concluded the cases aren't contradictory, pointing to the different legislation and legal contexts as enough to explain the different outcomes. Claude went a step further, identifying something the other two systems missed: Bickle didn't simply depart from Mohamed — it cited and confirmed the Mohamed case for initial-stage investigations before distinguishing the later steps. Gemini took the most forthright position of the three, describing the cases as creating a recognised “split in authority” between NSW state law and Commonwealth federal law, and advising practitioners to choose their jurisdiction strategically.

Drawing on the AI comparison responses and the primary judgments, the weight of analysis supports the view that the cases are reconcilable. They describe different stages of the same policing function.

Why Do the Cases Reach Different Results?

Three factors explain the divergence.

1. Different Legislation

Mohamed was decided under a NSW state statute. Bickle was decided under a Commonwealth Act. Neither court was bound by the other's interpretation when applying a different piece of legislation.

2. Different Stages of Police Activity

- **Assistance to the public** — responding to crime reports, assisting victims, providing protection. This can be a service. That's what Mohamed was about.
- **Exercise of police power** — conducting investigations, gathering evidence, deciding whether to charge a suspect, pursuing prosecutions. This is generally not a service. That's what Bickle was about.

The cases are saying the same thing about different stages of what police do.

3. Different Views of Who Benefits

Mohamed focused on the relationship between police and the individual standing in front of them. Bickle looked at the broader investigative function and concluded it serves the community at large, not any specific person — and therefore can't be a “service” in the discrimination law sense.

The Real Takeaway

Insightbox Pty Ltd

The question “Do NSW Police provide a service?” has a precise answer: it depends on when, and under which law, you’re asking. Police provide a service — within the meaning of discrimination law — when they’re responding to and assisting a person who reports a crime, at least in the initial stages of that interaction. Once they move into formal investigative territory, the answer generally flips.

Mohamed and Bickle aren’t in conflict. They describe two different stages of police activity. And they draw a clear line: assistance to victims is a service; the exercise of coercive state power is not.

Sources and References

Primary cases:

- **Commissioner of Police v Mohamed: NSW State Court**

<https://www.caselaw.nsw.gov.au/decision/549ffe573004262463c82c1c>

- **Bickle v State of Victoria - Federal Court of Australia:**

<https://www.austlii.edu.au/cgi-bin/viewdoc/au/cases/cth/FCA/2020/168.html>

- AI Fact-Check Comparison (ChatGPT, Claude, and Gemini responses)

Thursday, 26 March 2026

Annexure B**Transcript****Public Interest Fact Checking Discussion**

40 minutes

Fact Checkers: Employee A, Employee B**Supervisor:** **[2026-03-26] 1pm Fact Checking Discussion.m4a**

[Supervisor]

Okay. This meeting is recorded. Do you consent for the recording of this meeting and a transcript to be provided afterwards?

[Employee A]

Yeah.

[Employee B]

That's fine.

[Supervisor]

Okay. Cool.

This is a discussion stage about answers to a fact checking question that was sent to you both as employees for this fact checking service. This is a public interest fact checking question, meaning it will be released in the public domain for the public's benefit and to provide a legitimate example of the service to potential clients.

Do you both consent for your answers to be used by the company in this way?

[Employee A]

Yes, I'm fine.

[Employee B]

I'm fine with that as well.

[Supervisor]

Okay. Cool. The public interest question came from a conflict in case law between two published decisions.

The initial question was: **"Do New South Wales police provide a service?"** And a subsequent question was asked: **"Considering section 6 of the Police Act (NSW) is the investigation of crime, a service New South Wales Police provide?"**

On the 27th of February, 2026, employee A was sent information about those two cases and relevant excerpts. Meanwhile, employee B was not sent the prior information about the case law and had no knowledge or context about the fact checking question.

On the 9th of March, 2026, employee B was sent the initial question.

*This and the following 10 pages
is the annexure marked 'B'
in the Affidavit of*

Affirmed before me this 2nd April 2026

On the 13th of March, 2026, employee A was then sent the same initial question.

On the 13th of March employee B returned the answer to the initial question.

On the 16th of March employee A returned their answer to the initial question. They had disclosed they used AI specifically chat GPT, Claude and Gemini.

On the 19th of March, employee B was sent a subsequent question.

And then on the 20th of March, employee B returned their answer to the subsequent question. Employee A wasn't asked the subsequent question because they had answered that within the initial question.

The supervisor received answers to those questions from those two employees and recognised there was a difference in some of their answers. This is what this discussion meeting was scheduled for, to try and resolve some of those differences, and also, to see, how those differences, what caused those differences and to get to the bottom of it.

And then also to see if we can resolve any of it. My first question to employee A is: ***How did you obtain your answer?***

[Employee A]

I uploaded both links that were sent to me, to all three, AI's, and then I put them into a Word document and I went through all three of them. I found the commonalities and I pulled it out and I reworded it all myself. Then I read the documents that links myself and then made a comparison of what the AI said.

And then that's when I put all together in that Word document and then forwarded it across to you. So, I mean, the answers were, uh, it can be a service depending on what part of the investigation, uh, the judge was looking at, you know, so like I said in the, in my response, if for example, in the case of *Mohamed*¹, when they made a complaint, the judge there at a state level considered that to be a service, but anything after that was actually police procedures that they had to follow. And the, uh, *Bickle*² case was a little bit different because, uh, the mother of the young *Bickle* who got into an altercation at school, um, after she made the complaint, she said that the police didn't investigate properly, but the judge found that that wasn't a service because, um, nothing was done wrong.

The police decided not to pursue any charges with either party, but what went wrong in the *Bickle* case was when they interviewed the younger *Bickle* who has a disability, there was no adult or guardian there to, um, assist and just be there with him. So that wasn't considered a service, that was part of the, so the judge in the *Bickle* case, the judge threw out the service, bit the initial police, the police did nothing wrong. They decided there was no charges to be laid, but then the judge said, you know, we can move forward with the second part of this case because as a minor and as someone with a disability, uh, there should have been someone there present with the person when that was being interviewed.

So, and that's what, basically what I did, I used AI, I read both the cases myself and then I put it all together and then I just read it over a few times, multiple edits obviously, and then just sent it through and I, and it came out the way it came out. So.

[Supervisor]

All right. Yeah. Um, yeah.

I was just like, um, it's interesting to know how, um, you know, AI can be used for this sort of, um, for, for the service. But then, um, yeah, so then, uh, I guess, uh, employee B: ***How did you obtain your answer?***

¹ *Commissioner of Police v Mohamed* [2009] NSWCA 432

² *Bickle v State of Victoria (Victoria Police)* [2020] FCA 168

Insightbox Pty Ltd

ACN 670 479 875

[connectivity issue]

[Employee A]

In the meantime, it was really interesting using AI.

You said don't rely on it heavily, but it did do the initial research for me. So instead of me reading, I read both links you sent me, but what AI came back with, cause I specifically said the problem was "go through this, tell me what this is all about" and "explain it to me in layman's terms as someone with a non-legal background".

It did that and I went through it and I thought, okay, this was good.

I thought the *Mohamed*, the girls statement was pretty funny. I don't know. I'm guessing you read it as well.

You know, police were rude and they were yelling and screaming at me and they were laughing at us. I'm thinking, what? Really?

...

[Employee B]

My internet went out. This is the, the suspicious thing is that it, this is a, okay, now it's going to, I should be able to connect very soon. I apologise for that.

...

[Supervisor]

The question was, Employee B: ***How did you obtain your answer?***

[Employee B]

Just going off of my stuff, I worked purely on what you had given me before, like what you had given me, specifically the Section 6 of the Police Act. And I simply operated with the, because the question was, and I'm sure that maybe Employee A got the same question, I'm sorry, my internet dropped out around the time that that was discussed, but I obtained my answer by just looking at the, because it was basically a question of judgment of, *is investigating a crime a service?* For me, the way I see it is a crime, like investigating crime is something that can aid in the prevention of future crime.

And so I argue that, well, it's not explicit, it is implicit, if the function was correct, it is a service that is provided.

[Supervisor]

Can you confirm you didn't have access to those two cases that Employee A had prior information?

[Employee B]

Oh no, I do have, I do have access.

[Supervisor]

Sorry, at the time of the answering?

[Employee B]

At the time of when my question was being, when I answered, and when the question was, my explanation, I did not know of employee A's task and it has not influenced my answer in any way.

[Supervisor]

Did you use AI?

[Employee B]

No.

[Supervisor]

Okay, you only used, I'm guessing you used, the internet, Google engine search?

[Employee B]

This is regarding my first answer and my second answer. My first answer, which was, do the police provide a service?

I used the internet search. That's how I formulated most of my, I would look at the actual legislation, the Police Act, Law Enforcement Power Responsibilities Act, because I had prior knowledge of that.

I brought the cases, the one where I talked about, the failure to, I referenced a U.S. case in there because I had heard prior to it. I was aware of a case involving when the police didn't provide a service and it led to someone's death. But it was prior knowledge and some internet searches.

[Supervisor]

Okay.

[Employee B]

Most of what I thought was, thought to a high extent. Yeah.

[Supervisor]

Okay. I'm going to approach the point of conflict here.

I think you both agree that police do provide services and the conflict seems to be which activities are services that they provide.

To summarise each of your answers to see where that difference is. If I read again, employee A, your answer document, you have said the *Bickle* case, you said in that case refusing to investigate, investigation of the crime isn't a service. Is that correct? Is that how you've answered?

[Employee A]

Oh, no, it's the other way around. It's the yes. Correct.

The investigation is not a service. It's the police duty. It's using the what do they call it?

Was it procedural powers? Coercive powers, they called it. So the initial stages, for example, when anyone goes to the police station or calls the police, and then they were explaining, as in the *Mohamed* case, they said, oh, we got assaulted. We got attacked. The judge actually deemed that to be a service. Nothing else after that.

So the police going investigating the people who perpetrated the assault and whatever else they did, that was part of their roles, their duties, which is, which the judge said is not considered a service, but the initial stages, you know, me going to the police station is "hey, my car's stolen" and taking down all my details and all the information that's considered a service. Anything after that, like you said, the investigation, the arresting, the charging is a duty, is their coercive powers that they're entitled to use.

[Supervisor]

Okay and then, employee B has in this subsequent, I tried to narrow down the question to with the point of conflict.

Purely putting, providing this primary information, not really the judges opinion, but rather just the law on its own. *Do the police, is the investigation of crime a service?* And he answered, yes, it's definitely a service. And so maybe we, uh, it seems to me employee A has read the judge's decision and considers it a trustworthy authority.

He's relayed back, and then, but employee B didn't have the case and he was, he was just left to his own, like, you know, first-hand primary. He wasn't primed with a judge's opinion or decision. So it's just interesting, you know, and actually the two other employees have answered similar.

They weren't given the judge's case, the judge's, uh, decision. And they also answered similar to employee B.

It's just interesting how, you know, this difference in the trust, maybe people have in judges in them acting as authorities to then tell us what the truth of something is. This is the point of a contention of this question.

And then, you know, obviously you guys are either going to come to an agreement. One of you is going to change your answer or you're, you're both going to stay firm in your own answers. This is kind of what I want to work through.

[Employee A]

Oh, I agree with these view as well, because that's his view. Like, like you said, I did exactly what you said. I took the judge's words, judge's judgment as, you know, gospel, if you like, for lack of better term.

Yeah, but you know, my view, all I did was research and I took the judges, both judges and their judgments and their responses. And I compiled it in a document, whereas B it was his view. And I agree with what he wrote.

You know, it is a service because I don't know if you guys remember, maybe I'm showing my age here, but before currently it's called the New South Police Force at some point years and years ago, it was called the police service. And then they changed the name from service to force. So, uh, you know, like, uh, B said, it's not explicit.

It's, you know, it can be interpreted.

[Employee B]

Yeah, exactly. It's implied.

[Employee A]

Yeah.

[Employee B]

It's an interesting thing. There's actually, in the law enforcement power responsibilities, there is a little in part two, I think that's a section. There is a little bit where it does talk about common law and whether that has hold over the police.

I think it says that they're still allowed to exercise their, I guess, what they believe deem correct. I think common law, um, it's definitely an interesting thing, cause from what I hear, you say it's a duty and a duty isn't necessarily, isn't necessarily a service. Is that, am I, am I, am I correct in how I, if I understood that?

[Supervisor]

Let's focus on the definition of the word "service". How do you define the word "service"?

[Employee B]

I can quickly, cause I, I, I now just wanted to quickly, cause I think you've only, yeah, I've only received these.

[Supervisor]

Um, it's okay. I don't want to feel like I'm putting you on the spot.

[Employee B]

I'm just doing a quick read through, but yeah. I honestly I agree with employee A regarding, um, you know the view.

[Supervisor]

Work, work done for someone.

[Employee A]

To benefit someone, is a service.

[Supervisor]

For multiple people. This is a fact checking service. It is a work done for the client.

I think that's the pure definition of that word. And then I think, you know, investigating crime trying to look into obtaining information to, to determine whether there's, you know, there's like to detect crime. I'm just saying my own perspective here, because then I'm trying to link it back up to the original issue being the, you know, those case laws were related to the discrimination complaints and whether there can be, you know, are they liable for discrimination, during investigation?

I use the analogy of maybe for white people, there's, there's 10 stones they need to turn over to see whether crime is occurring. For white people, they'll leave no stone unturned. They'll look through all the evidence, but maybe for black people, they'll only turn over like two or three stones. And well, the, you know, the criminal evidence is in the sixth stone, which you didn't overturn.

I think that's discrimination. I think in that situation, you know, there has been, they're trying to get out of liability saying, well, when the investigation isn't a service and maybe, yeah, it is discrimination, but there's no jurisdiction for the complaint because it's only for services. I think this is a very dishonest way of getting out of a very obvious case of discrimination.

That's what I think is happening here. In that case, I think that judge behaved dishonestly. But he's in a position of authority, which is how I can see employee A has trusted that output.

Do you have anything to add on to or elaborate?

[Employee A]

I don't, it's just so open to interpretation.

[Employee B]

Yep. I mean, it does help. I definitely see some like overlap in our, we both say that, yeah, it is.

They do provide a service. And I think we are both in the same vein of like, in the same camp of, it depends. And I believe, yeah, it's implicit.

There's no like outright guideline where it's like, for this crime, do this. Very much is like, their aim is to do this, how they see it is as long as they follow the criteria, which is in the section six. That's kind of it.

So it's implied. I think that, I think that we both, let me just make sure, because I think we both talked about, um, or contradictory versus. I'm wondering if we both discussed.

I think in my answer, I wrote that a service is kind of a duty that is given to someone. And it is.

[Supervisor]

Maybe there's that distinction you know, mandatory service is a duty, but, you know, discretionary-

[Employee B]

Yeah, exactly.

[Supervisor]

Service. You know, I don't, I don't have to, um ... what's something you don't have to do?

...

[Supervisor]

You don't have to donate to charity. People donate to charity. You don't have to, it's not like tax.

You have to pay tax, but you don't have to donate to charity. Is service a duty? Yeah, I, we all agree that you do activities and out of all those activities, which one of those are services and the provision of services to people?

[Employee B]

I see services as it doesn't necessarily mean, because when you do community service, you're doing that. But I guess you could argue that you're doing that like yourself, like you're kind of forced to do it for yourself.

And I do feel like for my idea, because it is a duty, like even if, even if it isn't like the most, like, honestly, like a kindergarten teacher would be by herself because they're taking and teaching kindergarteners, a person who is, who's done crime and is serving it by doing a ICC or like community, community request is doing a service, not necessarily for the benefit of, not to the money or the appeasement of a second party, but like they are doing it because they were given a task to do or a duty. And I think what separates that the tax versus charity is that I guess there is, I don't quite see, I see sometimes it's voluntary and sometimes there's involuntary.

I don't think a person voluntarily just says, I'm going to pick up trash to reduce- Oh, well maybe they do, but I think that the service is a

[Supervisor]

We should go back to the point of dispute is ***whether the investigation of crime is a service that the New South Wales police provide?*** We can agree that investigation is an activity. The definition of service is just extending from the definition of activity being an activity for someone.

[Employee A]

Agreed.

[Supervisor]

And so is investigating for themselves, or for an individual or the community for someone that will help answer.

[Employee B]

If I have to say that it's kind of the scope of other scope, I think the issue is involuntary for charity. I think parity isn't necessarily a service, but I think that you are doing a service to them by giving them, even though it's one-sided, giving them. Regarding the police investigation, because I think that's the main crux, I see a duty as, as a service.

And so if the police is, that's also doing security, like they're passing the patrol areas, and things like that. I would say that it would fit A's definition, like A's definition of service and mine. Because there is overlap in that, mine is duty, but maybe employee A's more about whether you voluntarily do an action that betters someone.

For me, I feel like a service doesn't necessarily need to be one that is for the betterment of one part, like the other party. So if I said, police investigation, I would go that, yeah, it is a service. And you can consider it a duty.

And if your definition of service is it's not duty-bound, like you don't have then, you know, I can see that as well. I can see that.

[Supervisor]

In this context, I would think, who funds the police is the public, the taxpayer. It seems like they've been enacted to do work for the community, for the, it's crowdfunded by the community to do work for the community. So I would think even just my perspective is even prosecution, is a service for the community.

Otherwise, they just pick and choose who they get to like prosecute, I think then some, some people are going to preference certain races or certain genders or, people, protected characteristics. I don't know. I think if it's discretionary, like then there, there is a big, like, uh, they can then discriminate.

I think those are synonymous discretion and discriminator can sometimes be synonymous.

[Employee A]

And then we can say the entire legal system is a service, which I agree with. Like, I agree with that as well. Yeah, exactly.

Like you said, what I did was I, as you said, total judge's response, and I just put it in a document and sent it through. But my view is that the police is a service.

[Supervisor]

Yeah.

[Employee A]

Whatever they do, everything they do is a service. So, you know, I would use B's answer if you're going to publish anything, but, you know, if you want the judge's view, you've got my response. So it's all good.

[Employee B]

And I, I think that it's a very good, it's a very interesting idea of like, okay. So I'll just ramble on about how common law and, and the police power was like two different because they're separated by, the separation of powers. They honour it by saying, police like common law won't actually affect how police will act essentially.

This doesn't set a procedure. But I think that would be, that's out of the scope. But if it does, I think the key thing is our definitions, our definitions of what a service is.

And that's maybe , that's what you picked up with the conflict where, I define service as a duty, and employee A, you know, one is varied. I don't think you define it as explicitly as I did. But I do kind of, from what, from what you said originally employee A about a service being when some one party helps another party for the, to the better the other party.

I think that is also very valid. I'm sure maybe you have a more like, but you have like a, like a, a fairly conscious one, like on just one or not just, but like a fairly more like, cause that was a simple one, but maybe you have like a more one that very, that's more like more wider, but that's from what I gathered.

And no, I don't think that, um, I don't think we necessarily say a conflict, but I think that maybe, yeah, I don't really see it as a conflict necessarily regarding, you know.

[Supervisor]

It sounds like employee A has he said, he's done research and he's just, uh, relayed some research that he's done to obtain his answer.

[Employee A]

Correct.

[Supervisor]

And now you had read it. Um, I think the, the, the thing here is like, um, I don't think you've done anything wrong.

It's more of like the improvement in the, in the, in the service, in the fact checking is that what we're trying to sell here is the independent human, ordinary perspective. I think I said in email, I don't think the AI should replace your own critical thinking, but I think some people are, you know, maybe based on past experience or, you know, uh, either they've been threatened for, for their own, you know, independent perspective and opinion. Then they're kind of too scared to then say what they actually think.

And they just say what they think is like the safe option being just say what the judge said. And, you know, you should just trust that because they're in a position of authority. Is this kind of, is it, is this kind of like the way it may be how the way you've answered that first initial question employee A is kind of from, um, some, some like, cause I, from continuing, continuing your work, I'd want you to answer independently and based off primary information, rather than relaying back another person's opinion.

Cause the judge is just another person to me. It, you know, I don't want to say like, to me, I'm trying to dismantle like frauds in the system. And some of them may, may well indeed be judges or even high court judges.

[Employee A]

I understand. Agreed.

[Supervisor]

Okay. Well, um, the Zoom meeting is going to end in like five, six minutes.

...

Employee A has answered their question using AI and with prior information. There was a difference in the final, initially saying they think the investigation doesn't amount to a service provided by the police.

Employee B was different and said, didn't have that prior information and answered affirmatively that they do provide a service.

We then had this discussion, *has there been a change in any of your initial answers?*

[Employee B]

I think that it makes, it has made me want to consider, yes, because, you know, service is a service, but maybe there's like levels of accountability for a service. That's, that was one of my big points for mine, where I talked about in the US when a rejection of a service killed someone. And so, I suppose an interesting thing would be looking at, would be how, I guess common, how well separates common law from, you know, just police discretion, like on reasonable grounds.

[Supervisor]

I'm trying to get to the pure truth of something rather than, what is, I think can be a virus throughout the community, something false, and then it spreads and then people who are vulnerable, they then listen and trust that from authorities. It's a contagious disease in the legal sector. You've got to take it from the source.

[Employee B]

Employee A, did my paper change anything in how you see things? Because I think your one definitely did kind of highlight the distinction between I guess the police and the courts. I think both our answers are almost the same, but it's mainly like the difference in how we go about our research.

[Employee A]

I didn't actually express my view. I just relayed basically what the judges said. Yeah, my view is the police force is a service. They do provide a service.

It's like Centrelink does, just like the ATO does, just like child support does. They all provide a service, to serve. The police. These guys just have to carry a gun and they deal with probably the worst of humanity, you know, so that's the only real difference, yeah.

But otherwise, I totally agree that it's a service.

[Supervisor]

The investigation of crime?

[Employee A]

The whole thing is a service, yeah, absolutely. Charging someone is a service, arresting someone is a service.

[Supervisor]

Well, it's all a service.

[Employee A]

Even though it might be a physical act, arresting someone and tackling them, handcuffing them, they still provide a service to the community.

[Supervisor]

They are doing that to protect the community. It's work for the community, for someone. It is all service.

Okay, well.

[Employee A]

But that's not what the judge said in the *Mohamed* case. He said all that's not a service.

[Supervisor]

Yeah, I've agreed, the *Mohamed* case, that was-

[Employee B]

I think the judge was out of line.

[Supervisor]

I think even up until the prosecution, all of it is a service. That was very interesting. Okay, yeah, if there's any last few words you guys have to say.

[Employee B]

The *Mohamed* was a US case or was this New South Wales? Oh, this was New South Wales court. Yeah, that's a clear violation.

...

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[Employee A]

Yeah, no, I just agree that the police force does provide a service in everything they do.

[Employee B]

Yeah, I'm good. Yeah, right. And I agree with A. Yeah, I agree with A as well.

There's definitely, it definitely is injustice when I look at the *Mohamed* case as well. All right, yeah, no, it's great. I guess I'll talk to you guys later.

[Supervisor]

Yeah, okay, yeah, I'm happy with that. We've come to the final answer and it's like, yes, seems yes. Investigation of crime is a service.

And if you guys are happy with that, I'm happy with that.

[Employee A]

I'm all good.

[Employee B]

Yep. Okay. I'm great.

[Supervisor]

All right.

It was good chatting with you guys and, you know, have a great day and I'll send through the transcript.

AFFIDAVIT OF **02-04-2026**

COURT DETAILS

Court Supreme Court of New South Wales
Division
Registry Sydney
Case number

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

FILING DETAILS

Filed for Insightbox Pty Ltd Plaintiff
Filed in relation to Fact Check
Contact name and telephone
Contact email



AFFIDAVIT

Name

Address 490 Pitt Street, Haymarket NSW 2000

Occupation Fact Checker

Date 2 April 2026

I affirm:

1. I am a fact checker employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. This affidavit was prepared with the assistance of a supervisor.
3. Artificial intelligence was not used:
 - a. in this Affidavit or any Annexures.
4. The answers to the questions [Annexure A, pages 3-6].
5. Transcript of discussion to my answers [Annexure B, pages 7-17].

AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Capacity of witness [#Justice of the peace #Solicitor #Barrister #Commissioner for affidavits #Notary public]

And as a witness, I certify the following matters concerning the person who made this affidavit (the deponent):

1. #I saw the face of the deponent. [OR, delete whichever option is inapplicable]
 #I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.
2. #I have known the deponent for at least 12 months. [OR, delete whichever option is inapplicable]
 #I have confirmed the deponent's identity using the following identification document:

Identification document relied on (may be original or certified copy)

Signature of witness

Note: The deponent and witness must sign each page of the affidavit. See UCPR 35.7B.

The document was signed and witnessed over audio visual link in accordance with clause 2 of schedule 1 to the Electronic Transactions Regulation 2020



Monday, 9 March 2026



Public Interest Question

Insightbox Fact Checking

30 minutes

Do NSW Police provide a service?

Issued Date: 9/03/2026

Uploaded Date: 13/03/2026

Definitions

NSW Police;

The NSW Police Force are an organization established under the Police Act 1990 (NSW). The NSW Police are a public sector that works with the NSW government outlined by the Government Sector Employment Act 2013 No 40 (NSW).

The NSW Police are members of the executive branch of the NSW government who are tasked with the reduction of crime and violence in the community, as well as carrying out tasks related to the interest of the state.

Service; This definition is tricky in any context, one could argue that a service is an actionable request that is paid by one party to the service provider, or it is a duty that is given to someone. Mind you this is the general definition which must encompass different branches of services; professional services, general services or community service.

My belief is that a service is a duty appointed to a member or reasonable person. This could involve an action or responsibility. I argue that a service does not necessarily need to be transactional. Nor does it have to be something contracted, it can be just an act in itself with or without the presence of a second party.

this and the following pages
is the annexure marked "A"
in the Affidavit of
[redacted]
Affirmed before me on 2nd April 26



References

Law Enforcement (Powers and Responsibilities) Act 2002

Town of Castle Rock v. Gonzales (2005)

Police Act 1990 No 47 (NSW)

Government Sector Employment Act 2013 No 40 (NSW)

Suing NSW Police for Unlawful Arrest: Your Rights and Compensation Options - Peter O'Brien, October 9, 2025

NSW Premier Chris Minns confirms 'contact' between police, community group before attack, suggests volunteers could be armed - 9News Staff, Dec 28, 2025

The NSW Police is an institute of Australia which enforces the law outlined by the State (in this instance it would be New South Wales). Outlined under the Police Act 1990 (NSW); the mission of the NSW Police Force can be found in Section 6 (1):

- (1) The mission of the NSW Police Force is to work with the community to reduce violence, crime and fear.

To facilitate the reduction of crime the NSW Police are to provide Police services, through the following in Section 6(3):

- (a) services by way of prevention and detection of crime, and
- (b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and
- (c) the provision of essential services in emergencies, and (d) any other service prescribed by the regulations.

All services are to be conducted within the guidelines of the Law Enforcement (Powers and Responsibilities) Act 2002 (NSW). This includes the importance of warrants, searching (e.g. strip searching) protocols and matters regarding the provision of identification. These are only a shortlist of actions the NSW Police can take. However yes, the police do provide a service.

Yet the question becomes are Police required to perform these services. In the US, The Constitution, Bill of Rights nor any legal documents state the Police are required to perform their duties to protect and serve. This was apparent in the case of Town of Castle Rock v. Gonzales (2005) (US) where a restraining order was denied, leading to the death of the applicant by their estranged husband. The Supreme Court found the police not guilty for what could be stipulated as negligence.

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I find this a key reminder that not only should we consider whether the police do provide services. But whether they are accountable for rejecting or not providing the services that are outlined by Section 6(3) of the Police Act 1990 (NSW)

Mind you I am not including instances of police malpractice or misconduct. Those involve the failure to uphold their duty of care which is easily punishable by way of settlement Peter O'Brien (2025).

No, this is a matter regarding whether at bare minimum the police must provide assistance as outlined by Section 6(3) of the Police Act 1990 (NSW) and whether they are accountable if they reject to provide a service which resulted in the escalation of a situation or consequentially the endangerment reflective of Town of Castle Rock v. Gonzales (2005)

Unfortunately, this is the case, there is a lack of accountability for rejecting a request that would protect the community. This is apparent in the case of the Bondi Beach Attack in December 2025. Where a request for more police presence was denied by the NSW Police prior to the attack. The shooting saw numerous casualties and the death of multiple members of the Jewish community. 9News Staff (2025).

While the denial did not lead to the deaths necessarily it definitely highlights a failure of the NSW Police to provide adequate presence in relation to Section 6(3)(b) of the Police Act 1990 (NSW)

"(b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and..."

Therefore, the NSW Police will provide a service however they are allowed to reject requests for services as seen in the aforementioned case without accountability, showcasing a flaw in the legal system and the functions of the NSW police.

Note that whenever a request is made to the NSW police they are sometimes for quite serious cases and it's unfortunate that there are cases of Apprehended Violence Orders or requests for more protection which can be rejected or pending, when they are at their most vulnerable.

It's important that as many cases are treated seriously when a party is endangered, without a service being guaranteed, or explicit guidelines to dismiss a request we can't be certain whether a request will be ignored or accepted by the NSW police in the interest of protecting the community. And if the police can't protect people or reassure people that they can protect them in cases of violence or threats to people's lives. Who will?



Public Interest Question

Insightbox Fact Checking

15 minutes

Considering section 6 of *Police Act 1990* (NSW)

6 Mission and functions of NSW Police Force

(1) The mission of the NSW Police Force is to work with the community to reduce violence, crime and fear.

(2) The NSW Police Force has the following functions—

- (a) to provide police services for New South Wales,
- (b) to exercise any other function conferred on it by or under this or any other Act,
- (c) to do anything necessary for, or incidental to, the exercise of its functions.

(3) In this section—

police services includes—

- (a) services by way of prevention and detection of crime, and
- (b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and
- (c) the provision of essential services in emergencies, and
- (d) any other service prescribed by the regulations.

...

Is the investigation of crime a service NSW Police provide?

Investigation: To analyse an area of interest, to look for facts or prove something
Crime: Malicious or harmful actions outlined by The Crimes Act 1900 No 40 (NSW)
NSW Police: The Law Enforcement Body of Australia as outlined by the Police Act 1990 (NSW)

I personally believe that the investigation of a crime is a service that isn't explicitly stated but is definitely provided. It could be argued that an investigation of crime can be done to determine parties affected or involved in a crime which aligns with (b), an investigation of crime could help catch a criminal which would align with (a) as the capture of a repeat offender would prevent future crime. I believe an investigation is implicit rather than explicit. I think some crimes are more likely to warrant investigation however, there is definitely a service to investigate crime.

Thursday, 26 March 2026

Annexure B

Transcript

Public Interest Fact Checking Discussion

40 minutes

Fact Checkers: Employee A, Employee B**Supervisor:** **[2026-03-26] 1pm Fact Checking Discussion.m4a**

[Supervisor]

Okay. This meeting is recorded. Do you consent for the recording of this meeting and a transcript to be provided afterwards?

[Employee A]

Yeah.

[Employee B]

That's fine.

[Supervisor]

Okay. Cool.

This is a discussion stage about answers to a fact checking question that was sent to you both as employees for this fact checking service. This is a public interest fact checking question, meaning it will be released in the public domain for the public's benefit and to provide a legitimate example of the service to potential clients.

Do you both consent for your answers to be used by the company in this way?

[Employee A]

Yes, I'm fine.

[Employee B]

I'm fine with that as well.

[Supervisor]

Okay. Cool. The public interest question came from a conflict in case law between two published decisions.

The initial question was: **"Do New South Wales police provide a service?"** And a subsequent question was asked: **"Considering section 6 of the Police Act (NSW) is the investigation of crime, a service New South Wales Police provide?"**

On the 27th of February, 2026, employee A was sent information about those two cases and relevant excerpts. Meanwhile, employee B was not sent the prior information about the case law and had no knowledge or context about the fact checking question.

On the 9th of March, 2026, employee B was sent the initial question.

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On the 13th of March, 2026, employee A was then sent the same initial question.

On the 13th of March employee B returned the answer to the initial question.

On the 16th of March employee A returned their answer to the initial question. They had disclosed they used AI specifically chat GPT, Claude and Gemini.

On the 19th of March, employee B was sent a subsequent question.

And then on the 20th of March, employee B returned their answer to the subsequent question. Employee A wasn't asked the subsequent question because they had answered that within the initial question.

The supervisor received answers to those questions from those two employees and recognised there was a difference in some of their answers. This is what this discussion meeting was scheduled for, to try and resolve some of those differences, and also, to see, how those differences, what caused those differences and to get to the bottom of it.

And then also to see if we can resolve any of it. My first question to employee A is: ***How did you obtain your answer?***

[Employee A]

I uploaded both links that were sent to me, to all three, AI's, and then I put them into a Word document and I went through all three of them. I found the commonalities and I pulled it out and I reworded it all myself. Then I read the documents that links myself and then made a comparison of what the AI said.

And then that's when I put all together in that Word document and then forwarded it across to you. So, I mean, the answers were, uh, it can be a service depending on what part of the investigation, uh, the judge was looking at, you know, so like I said in the, in my response, if for example, in the case of *Mohamed*¹, when they made a complaint, the judge there at a state level considered that to be a service, but anything after that was actually police procedures that they had to follow. And the, uh, *Bickle*² case was a little bit different because, uh, the mother of the young *Bickle* who got into an altercation at school, um, after she made the complaint, she said that the police didn't investigate properly, but the judge found that that wasn't a service because, um, nothing was done wrong.

The police decided not to pursue any charges with either party, but what went wrong in the *Bickle* case was when they interviewed the younger *Bickle* who has a disability, there was no adult or guardian there to, um, assist and just be there with him. So that wasn't considered a service, that was part of the, so the judge in the *Bickle* case, the judge threw out the service, bit the initial police, the police did nothing wrong. They decided there was no charges to be laid, but then the judge said, you know, we can move forward with the second part of this case because as a minor and as someone with a disability, uh, there should have been someone there present with the person when that was being interviewed.

So, and that's what, basically what I did, I used AI, I read both the cases myself and then I put it all together and then I just read it over a few times, multiple edits obviously, and then just sent it through and I, and it came out the way it came out. So.

[Supervisor]

All right. Yeah. Um, yeah.

I was just like, um, it's interesting to know how, um, you know, AI can be used for this sort of, um, for, for the service. But then, um, yeah, so then, uh, I guess, uh, employee B: ***How did you obtain your answer?***

¹ *Commissioner of Police v Mohamed* [2009] NSWCA 432

² *Bickle v State of Victoria (Victoria Police)* [2020] FCA 168

[connectivity issue]

[Employee A]

In the meantime, it was really interesting using AI.

You said don't rely on it heavily, but it did do the initial research for me. So instead of me reading, I read both links you sent me, but what AI came back with, cause I specifically said the problem was "go through this, tell me what this is all about" and "explain it to me in layman's terms as someone with a non-legal background".

It did that and I went through it and I thought, okay, this was good.

I thought the *Mohamed*, the girls statement was pretty funny. I don't know. I'm guessing you read it as well.

You know, police were rude and they were yelling and screaming at me and they were laughing at us. I'm thinking, what? Really?

...

[Employee B]

My internet went out. This is the, the suspicious thing is that it, this is a, okay, now it's going to, I should be able to connect very soon. I apologise for that.

...

[Supervisor]

The question was, Employee B: ***How did you obtain your answer?***

[Employee B]

Just going off of my stuff, I worked purely on what you had given me before, like what you had given me, specifically the Section 6 of the Police Act. And I simply operated with the, because the question was, and I'm sure that maybe Employee A got the same question, I'm sorry, my internet dropped out around the time that that was discussed, but I obtained my answer by just looking at the, because it was basically a question of judgment of, *is investigating a crime a service?* For me, the way I see it is a crime, like investigating crime is something that can aid in the prevention of future crime.

And so I argue that, well, it's not explicit, it is implicit, if the function was correct, it is a service that is provided.

[Supervisor]

Can you confirm you didn't have access to those two cases that Employee A had prior information?

[Employee B]

Oh no, I do have, I do have access.

[Supervisor]

Sorry, at the time of the answering?

[Employee B]

At the time of when my question was being, when I answered, and when the question was, my explanation, I did not know of employee A's task and it has not influenced my answer in any way.

[Supervisor]

Did you use AI?

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[Employee B]

No.

[Supervisor]

Okay, you only used, I'm guessing you used, the internet, Google engine search?

[Employee B]

This is regarding my first answer and my second answer. My first answer, which was, do the police provide a service?

I used the internet search. That's how I formulated most of my, I would look at the actual legislation, the Police Act, Law Enforcement Power Responsibilities Act, because I had prior knowledge of that.

I brought the cases, the one where I talked about, the failure to, I referenced a U.S. case in there because I had heard prior to it. I was aware of a case involving when the police didn't provide a service and it led to someone's death. But it was prior knowledge and some internet searches.

[Supervisor]

Okay.

[Employee B]

Most of what I thought was, thought to a high extent. Yeah.

[Supervisor]

Okay. I'm going to approach the point of conflict here.

I think you both agree that police do provide services and the conflict seems to be which activities are services that they provide.

To summarise each of your answers to see where that difference is. If I read again, employee A, your answer document, you have said the *Bickle* case, you said in that case refusing to investigate, investigation of the crime isn't a service. Is that correct? Is that how you've answered?

[Employee A]

Oh, no, it's the other way around. It's the yes. Correct.

The investigation is not a service. It's the police duty. It's using the what do they call it?

Was it procedural powers? Coercive powers, they called it. So the initial stages, for example, when anyone goes to the police station or calls the police, and then they were explaining, as in the *Mohamed* case, they said, oh, we got assaulted. We got attacked. The judge actually deemed that to be a service. Nothing else after that.

So the police going investigating the people who perpetrated the assault and whatever else they did, that was part of their roles, their duties, which is, which the judge said is not considered a service, but the initial stages, you know, me going to the police station is "hey, my car's stolen" and taking down all my details and all the information that's considered a service. Anything after that, like you said, the investigation, the arresting, the charging is a duty, is their coercive powers that they're entitled to use.

[Supervisor]

Okay and then, employee B has in this subsequent, I tried to narrow down the question to with the point of conflict.

Purely putting, providing this primary information, not really the judges opinion, but rather just the law on its own. *Do the police, is the investigation of crime a service?* And he answered, yes, it's definitely a service. And so maybe we, uh, it seems to me employee A has read the judge's decision and considers it a trustworthy authority.

He's relayed back, and then, but employee B didn't have the case and he was, he was just left to his own, like, you know, first-hand primary. He wasn't primed with a judge's opinion or decision. So it's just interesting, you know, and actually the two other employees have answered similar.

They weren't given the judge's case, the judge's, uh, decision. And they also answered similar to employee B.

It's just interesting how, you know, this difference in the trust, maybe people have in judges in them acting as authorities to then tell us what the truth of something is. This is the point of a contention of this question.

And then, you know, obviously you guys are either going to come to an agreement. One of you is going to change your answer or you're, you're both going to stay firm in your own answers. This is kind of what I want to work through.

[Employee A]

Oh, I agree with these view as well, because that's his view. Like, like you said, I did exactly what you said. I took the judge's words, judge's judgment as, you know, gospel, if you like, for lack of better term.

Yeah, but you know, my view, all I did was research and I took the judges, both judges and their judgments and their responses. And I compiled it in a document, whereas B it was his view. And I agree with what he wrote.

You know, it is a service because I don't know if you guys remember, maybe I'm showing my age here, but before currently it's called the New South Police Force at some point years and years ago, it was called the police service. And then they changed the name from service to force. So, uh, you know, like, uh, B said, it's not explicit.

It's, you know, it can be interpreted.

[Employee B]

Yeah, exactly. It's implied.

[Employee A]

Yeah.

[Employee B]

It's an interesting thing. There's actually, in the law enforcement power responsibilities, there is a little in part two, I think that's a section. There is a little bit where it does talk about common law and whether that has hold over the police.

I think it says that they're still allowed to exercise their, I guess, what they believe deem correct. I think common law, um, it's definitely an interesting thing, cause from what I hear, you say it's a duty and a duty isn't necessarily, isn't necessarily a service. Is that, am I, am I, am I correct in how I, if I understood that?

[Supervisor]

Let's focus on the definition of the word "service". How do you define the word "service"?

[Employee B]

I can quickly, cause I, I, I now just wanted to quickly, cause I think you've only, yeah, I've only received these.

[Supervisor]

Um, it's okay. I don't want to feel like I'm putting you on the spot.

[Employee B]

I'm just doing a quick read through, but yeah. I honestly I agree with employee A regarding, um, you know the view.

[Supervisor]

Work, work done for someone.

[Employee A]

To benefit someone, is a service.

[Supervisor]

For multiple people. This is a fact checking service. It is a work done for the client.

I think that's the pure definition of that word. And then I think, you know, investigating crime trying to look into obtaining information to, to determine whether there's, you know, there's like to detect crime. I'm just saying my own perspective here, because then I'm trying to link it back up to the original issue being the, you know, those case laws were related to the discrimination complaints and whether there can be, you know, are they liable for discrimination, during investigation?

I use the analogy of maybe for white people, there's, there's 10 stones they need to turn over to see whether crime is occurring. For white people, they'll leave no stone unturned. They'll look through all the evidence, but maybe for black people, they'll only turn over like two or three stones. And well, the, you know, the criminal evidence is in the sixth stone, which you didn't overturn.

I think that's discrimination. I think in that situation, you know, there has been, they're trying to get out of liability saying, well, when the investigation isn't a service and maybe, yeah, it is discrimination, but there's no jurisdiction for the complaint because it's only for services. I think this is a very dishonest way of getting out of a very obvious case of discrimination.

That's what I think is happening here. In that case, I think that judge behaved dishonestly. But he's in a position of authority, which is how I can see employee A has trusted that output.

Do you have anything to add on to or elaborate?

[Employee A]

I don't, it's just so open to interpretation.

[Employee B]

Yep. I mean, it does help. I definitely see some like overlap in our, we both say that, yeah, it is.

They do provide a service. And I think we are both in the same vein of like, in the same camp of, it depends. And I believe, yeah, it's implicit.

There's no like outright guideline where it's like, for this crime, do this. Very much is like, their aim is to do this, how they see it is as long as they follow the criteria, which is in the section six. That's kind of it.

So it's implied. I think that, I think that we both, let me just make sure, because I think we both talked about, um, or contradictory versus. I'm wondering if we both discussed.

I think in my answer, I wrote that a service is kind of a duty that is given to someone. And it is.

[Supervisor]

Maybe there's that distinction you know, mandatory service is a duty, but, you know, discretionary-

[Employee B]

Yeah, exactly.

[Supervisor]

Service. You know, I don't, I don't have to, um ... what's something you don't have to do?

...

[Supervisor]

You don't have to donate to charity. People donate to charity. You don't have to, it's not like tax.

You have to pay tax, but you don't have to donate to charity. Is service a duty? Yeah, I, we all agree that you do activities and out of all those activities, which one of those are services and the provision of services to people?

[Employee B]

I see services as it doesn't necessarily mean, because when you do community service, you're doing that. But I guess you could argue that you're doing that like yourself, like you're kind of forced to do it for yourself.

And I do feel like for my idea, because it is a duty, like even if, even if it isn't like the most, like, honestly, like a kindergarten teacher would be by herself because they're taking and teaching kindergarteners, a person who is, who's done crime and is serving it by doing a ICC or like community, community request is doing a service, not necessarily for the benefit of, not to the money or the appeasement of a second party, but like they are doing it because they were given a task to do or a duty. And I think what separates that the tax versus charity is that I guess there is, I don't quite see, I see sometimes it's voluntary and sometimes there's involuntary.

I don't think a person voluntarily just says, I'm going to pick up trash to reduce- Oh, well maybe they do, but I think that the service is a

[Supervisor]

We should go back to the point of dispute is ***whether the investigation of crime is a service that the New South Wales police provide?*** We can agree that investigation is an activity. The definition of service is just extending from the definition of activity being an activity for someone.

[Employee A]

Agreed.

[Supervisor]

And so is investigating for themselves, or for an individual or the community for someone that will help answer.

[Employee B]

If I have to say that it's kind of the scope of other scope, I think the issue is involuntary for charity. I think parity isn't necessarily a service, but I think that you are doing a service to them by giving them, even though it's one-sided, giving them. Regarding the police investigation, because I think that's the main crux, I see a duty as, as a service.

And so if the police is, that's also doing security, like they're passing the patrol areas, and things like that. I would say that it would fit A's definition, like A's definition of service and mine. Because there is overlap in that, mine is duty, but maybe employee A's more about whether you voluntarily do an action that betters someone.

For me, I feel like a service doesn't necessarily need to be one that is for the betterment of one part, like the other party. So if I said, police investigation, I would go that, yeah, it is a service. And you can consider it a duty.

And if your definition of service is it's not duty-bound, like you don't have then, you know, I can see that as well. I can see that.

[Supervisor]

In this context, I would think, who funds the police is the public, the taxpayer. It seems like they've been enacted to do work for the community, for the, it's crowdfunded by the community to do work for the community. So I would think even just my perspective is even prosecution, is a service for the community.

Otherwise, they just pick and choose who they get to like prosecute, I think then some, some people are going to preference certain races or certain genders or, people, protected characteristics. I don't know. I think if it's discretionary, like then there, there is a big, like, uh, they can then discriminate.

I think those are synonymous discretion and discriminator can sometimes be synonymous.

[Employee A]

And then we can say the entire legal system is a service, which I agree with. Like, I agree with that as well. Yeah, exactly.

Like you said, what I did was I, as you said, total judge's response, and I just put it in a document and sent it through. But my view is that the police is a service.

[Supervisor]

Yeah.

[Employee A]

Whatever they do, everything they do is a service. So, you know, I would use B's answer if you're going to publish anything, but, you know, if you want the judge's view, you've got my response. So it's all good.

[Employee B]

And I, I think that it's a very good, it's a very interesting idea of like, okay. So I'll just ramble on about how common law and, and the police power was like two different because they're separated by, the separation of powers. They honour it by saying, police like common law won't actually affect how police will act essentially.

This doesn't set a procedure. But I think that would be, that's out of the scope. But if it does, I think the key thing is our definitions, our definitions of what a service is.

And that's maybe , that's what you picked up with the conflict where, I define service as a duty, and employee A, you know, one is varied. I don't think you define it as explicitly as I did. But I do kind of, from what, from what you said originally employee A about a service being when some one party helps another party for the, to the better the other party.

I think that is also very valid. I'm sure maybe you have a more like, but you have like a, like a, a fairly conscious one, like on just one or not just, but like a fairly more like, cause that was a simple one, but maybe you have like a more one that very, that's more like more wider, but that's from what I gathered.

And no, I don't think that, um, I don't think we necessarily say a conflict, but I think that maybe, yeah, I don't really see it as a conflict necessarily regarding, you know.

[Supervisor]

It sounds like employee A has he said, he's done research and he's just, uh, relayed some research that he's done to obtain his answer.

[Employee A]

Correct.

[Supervisor]

And now you had read it. Um, I think the, the, the thing here is like, um, I don't think you've done anything wrong.

It's more of like the improvement in the, in the, in the service, in the fact checking is that what we're trying to sell here is the independent human, ordinary perspective. I think I said in email, I don't think the AI should replace your own critical thinking, but I think some people are, you know, maybe based on past experience or, you know, uh, either they've been threatened for, for their own, you know, independent perspective and opinion. Then they're kind of too scared to then say what they actually think.

And they just say what they think is like the safe option being just say what the judge said. And, you know, you should just trust that because they're in a position of authority. Is this kind of, is it, is this kind of like the way it may be how the way you've answered that first initial question employee A is kind of from, um, some, some like, cause I, from continuing, continuing your work, I'd want you to answer independently and based off primary information, rather than relaying back another person's opinion.

Cause the judge is just another person to me. It, you know, I don't want to say like, to me, I'm trying to dismantle like frauds in the system. And some of them may, may well indeed be judges or even high court judges.

[Employee A]

I understand. Agreed.

[Supervisor]

Okay. Well, um, the Zoom meeting is going to end in like five, six minutes.

...

Employee A has answered their question using AI and with prior information. There was a difference in the final, initially saying they think the investigation doesn't amount to a service provided by the police.

Employee B was different and said, didn't have that prior information and answered affirmatively that they do provide a service.

We then had this discussion, *has there been a change in any of your initial answers?*

[Employee B]

I think that it makes, it has made me want to consider, yes, because, you know, service is a service, but maybe there's like levels of accountability for a service. That's, that was one of my big points for mine, where I talked about in the US when a rejection of a service killed someone. And so, I suppose an interesting thing would be looking at, would be how, I guess common, how well separates common law from, you know, just police discretion, like on reasonable grounds.

[Supervisor]

I'm trying to get to the pure truth of something rather than, what is, I think can be a virus throughout the community, something false, and then it spreads and then people who are vulnerable, they then listen and trust that from authorities. It's a contagious disease in the legal sector. You've got to take it from the source.

[Employee B]

Employee A, did my paper change anything in how you see things? Because I think your one definitely did kind of highlight the distinction between I guess the police and the courts. I think both our answers are almost the same, but it's mainly like the difference in how we go about our research.

[Employee A]

I didn't actually express my view. I just relayed basically what the judges said. Yeah, my view is the police force is a service. They do provide a service.

It's like Centrelink does, just like the ATO does, just like child support does. They all provide a service, to serve. The police. These guys just have to carry a gun and they deal with probably the worst of humanity, you know, so that's the only real difference, yeah.

But otherwise, I totally agree that it's a service.

[Supervisor]

The investigation of crime?

[Employee A]

The whole thing is a service, yeah, absolutely. Charging someone is a service, arresting someone is a service.

[Supervisor]

Well, it's all a service.

[Employee A]

Even though it might be a physical act, arresting someone and tackling them, handcuffing them, they still provide a service to the community.

[Supervisor]

They are doing that to protect the community. It's work for the community, for someone. It is all service.

Okay, well.

[Employee A]

But that's not what the judge said in the *Mohamed* case. He said all that's not a service.

[Supervisor]

Yeah, I've agreed, the *Mohamed* case, that was-

[Employee B]

I think the judge was out of line.

[Supervisor]

I think even up until the prosecution, all of it is a service. That was very interesting. Okay, yeah, if there's any last few words you guys have to say.

[Employee B]

The *Mohamed* was a US case or was this New South Wales? Oh, this was New South Wales court. Yeah, that's a clear violation.

...

[Employee A]

Yeah, no, I just agree that the police force does provide a service in everything they do.

[Employee B]

Yeah, I'm good. Yeah, right. And I agree with A. Yeah, I agree with A as well.

There's definitely, it definitely is injustice when I look at the *Mohamed* case as well. All right, yeah, no, it's great. I guess I'll talk to you guys later.

[Supervisor]

Yeah, okay, yeah, I'm happy with that. We've come to the final answer and it's like, yes, seems yes. Investigation of crime is a service.

And if you guys are happy with that, I'm happy with that.

[Employee A]

I'm all good.

[Employee B]

Yep. Okay. I'm great.

[Supervisor]

All right.

It was good chatting with you guys and, you know, have a great day and I'll send through the transcript.

AFFIDAVIT OF **28-04-2026**

COURT DETAILS

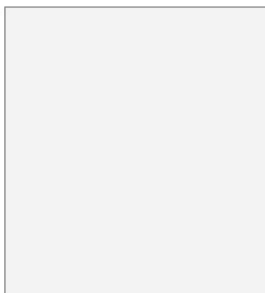
Court Supreme Court of New South Wales
Division
Registry Sydney
Case number

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

FILING DETAILS

Filed for Insightbox Pty Ltd Plaintiff
Filed in relation to Fact Check
Contact name and telephone
Contact email



AFFIDAVIT

Name

Address 490 Pitt Street, Haymarket NSW 2000

Occupation Fact Checker

Date 28 April 2026

I on oath ~~swear~~/affirm:

1. I am a fact checker employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. This affidavit was prepared with the assistance of a supervisor.
3. Artificial intelligence was not used:
 - a. in this Affidavit or any Annexures.
4. The answers to the questions [Annexure A, pages 3-4].

~~SWORN~~/AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Capacity of witness

[~~#Justice of the peace~~ ~~#Solicitor~~ ~~#Barrister~~ ~~#Commissioner for affidavits~~ ~~#Notary public~~]

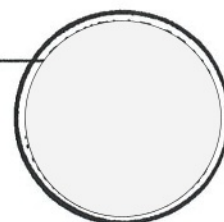
And as a witness, I certify the following matters concerning the person who made this affidavit (the **deponent**):

1. ~~#I saw the face of the deponent. [OR, delete whichever option is inapplicable]~~
~~#I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.~~
2. ~~#I have known the deponent for at least 12 months. [OR, delete whichever option is inapplicable]~~
~~#I have confirmed the deponent's identity using the following identification document:~~

Identification document relied on (may be original or certified copy)

Signature of witness

Note: The deponent and witness must sign this affidavit. See UCPR 35.7B.



Monday, 9 March 2026

Public Interest Question

Insightbox Fact Checking

30 minutes

Do NSW Police provide a service?

Depending on whether you engage with the Police as an arrested person, a victim, witness, local community member or in another capacity, the NSW Police Force implements a range of functions and social responses to serve the public's interests and enforce state law. Police are generally expected to act for "the common good" and demonstrate this by providing community safety and crime initiatives such as public patrol, criminal and civil investigations, and are often the first responders for drug-affected/mental health crises.

The NSW Police also provides several public-focused services that engage with the community, including police background checks, road safety enforcement, lost property reports, and youth engagement programs in local schools.

Further, the NSW Police provide services in force and crowd control; this is especially critiqued during protests, where the role of the Police is seen to prioritise social order and suppress civil liberties deemed anti-authority behaviour. The Police ultimately provides a level of protection to people and property but in many circumstances can constitute harm to marginalised communities.

References

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- NSW Community Engagement Policy Statement https://www.police.nsw.gov.au/_data/assets/pdf_file/0008/858257/CoP_signed_Community_Engagement_Policy_Framework.pdf
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- Role and Power of the police <https://mhrm.mhcc.org.au/chapters/chapter-6-mental-illness-and-the-criminal-justice-system/6b-role-and-powers-of-the-police/>
- Police Services 2026 Report <https://www.pc.gov.au/ongoing/report-on-government-services/justice/police-services/>
- PANSW Statement on policing response at Sydney protest <https://www.pansw.org.au/knowledgebase/article/KA-01492>
- Good and Bad Police Services and How to Pick Them by John Braithwaite <https://www0.anu.edu.au/fellows/jbraithwaite/documents/Articles/Good%20and%20Bad%20Police%20Services%20and%20How%20to%20Pick%20Them.pdf>
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This and the following 5 pages is the Annexure marked A referred to in the Affidavit of [redacted], affirmed before me this 28 day of April, 2026

Insightbox Pty Ltd

Thursday, 19 March 2026

Public Interest Question



Insightbox Fact Checking

15 minutes

Considering section 6 of *Police Act 1990* (NSW)

6 Mission and functions of NSW Police Force

(1) The mission of the NSW Police Force is to work with the community to reduce violence, crime and fear.

(2) The NSW Police Force has the following functions—

- (a) to provide police services for New South Wales,
- (b) to exercise any other function conferred on it by or under this or any other Act,
- (c) to do anything necessary for, or incidental to, the exercise of its functions.

(3) In this section—

police services includes—

- (a) services by way of prevention and detection of crime, and
- (b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and
- (c) the provision of essential services in emergencies, and
- (d) any other service prescribed by the regulations.

...

Is the investigation of crime a service NSW Police provide?

Yes. Investigating crime is a key service of the NSW Police Force. The Police have legislative powers to arrest, search, and question people in order to identify offenders and solve cases.

REFERENCES

- https://www.police.nsw.gov.au/_data/assets/pdf_file/0020/236441/Fact_Sheet_06_Investigation_Process_120318.pdf
- <https://www.legalaid.nsw.gov.au/ways-to-get-help/publications-and-resources/police-powers#aaccordion-c61305c6bb-item-c73b0e65ac>
- https://www.police.nsw.gov.au/_data/assets/pdf_file/0011/271658/Investigation_Process_12.pdf
- <https://www.abc.net.au/news/2025-08-08/erin-patterson-police-interview-death-cap-mushroom-trial/105498228>

AFFIDAVIT OF **-04-2026**

COURT DETAILS

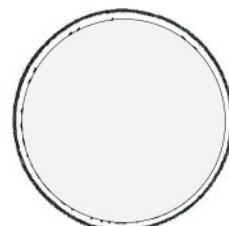
Court Supreme Court of New South Wales
Division
Registry Sydney
Case number

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

FILING DETAILS

Filed for Insightbox Pty Ltd Plaintiff
Filed in relation to Fact Check
Contact name and telephone
Contact email



15 MAY 2026

AFFIDAVIT

Name

Address

490 Pitt Street, Haymarket NSW 2000

Occupation

Fact Checker

Date

April 2026 or May 2026 M.G.

I on oath swear/affirm:

1. I am a fact checker employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. This affidavit was prepared with the assistance of a supervisor.
3. Artificial intelligence was not used:
 - a. in this Affidavit or any Annexures.
4. The answers to the questions [Annexure A, pages 3-5].

SWORN/AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Capacity of witness

[#Justice of the peace #Solicitor #Barrister #Commissioner for affidavits #Notary public]

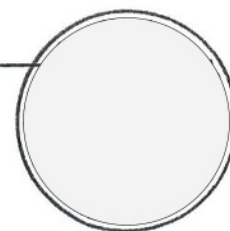
And as a witness, I certify the following matters concerning the person who made this affidavit (the **deponent**):

1. ~~#I saw the face of the deponent. [OR, delete whichever option is inapplicable]~~
~~#I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.~~
2. ~~#I have known the deponent for at least 12 months. [OR, delete whichever option is inapplicable]~~
 #I have confirmed the deponent's identity using the following identification document:

Identification document relied on (may be original or certified copy)

Signature of witness

Note: The deponent and witness must sign each page of the affidavit. See UCPR 35.7B.



Insightbox Pty Ltd

Monday, 9 March 2026

Annexure A

This and the following 2 pages is the annexure marked
 "A" referred to in the Affidavit
 of [redacted]
 declared/sworn/affirmed before me this 15
 day of May, 2026

Public Interest Question

Insightbox Fact Checking

30 minutes

Do NSW Police provide a service?

Yes, NSW Police provide substantial services such as below.

Online Services:

1. **Customer Service Charter** - for the community, customer who are victims, witnesses, and including internal colleagues.
2. **User Pays Policing Services** - provide public policing services for business clients to assist them to meet their business needs as well as their responsibilities to the communities.

The people who may well benefit from the public services supplied under user charges arrangements are the promoters, or event organisers, and specific members of the community.

3. **Firearms Online Services** - NSW Police Force also responsible for administering the Firearms and Prohibited Weapons legislation. The firearms online services provide customers with extensive information and guidance about firearm and prohibited weapon.
4. **The Security Licensing and Enforcement Directorate's (SLED) -**
 - administers and enforces the Security Industry Act 1997 and the associated Security Industry Regulation 2016.
 - regulates also the NSW tattoo industry under the Tattoo Industry Act 2012 and the Tattoo Industry Regulation 2023. Local police and SLED work hand in hand to ensure tattoo industry compliance with the legislation and take on audits of body art tattooing businesses and tattooists.
5. **NSW Police Force InfoLink Unit** - the NSW Police Force (NSWPF), respond to requests from external parties for information in accordance with legislation and when applicable, manage disagreements to the release of information.
6. **Register my business or residential CCTV details** - The NSW Police Force CCTV Register ('the Register') records the location of CCTV installations across NSW. Online service where you can register or update business or residential CCTV details.
7. **Party Safety** - online registration of your party with the police for safety and security. Also provides safe party tips.

Insightbox Pty Ltd

8. **National Police Check verification service** – verifies the authenticity of a National Police Certificate.
9. **Scrap Metal Industry** – NSW Police officers impose the scrap metal legislation. To guarantee scrap metal dealers are complying with the legislation, NSW Police officers conduct inspections and audits of businesses.
10. **Providing Feedback** – members of the community can submit compliments, complaints and suggestions to help improve the quality of the NSW Police service.

Other Services:

- Triple Zero (000) for all emergencies
- Police Assistance Line (131444) for non-urgent police assistance and general enquiries
- Crime Stoppers (1800 333 000) to report information about crime

Reference:

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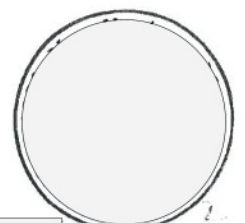
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NSW Police Force, Our work means more, viewed 12 March 2026,
<<https://www.police.nsw.gov.au/home>>.



Insightbox Pty Ltd

Thursday, 19 March 2026

Public Interest Question

Insightbox Fact Checking

15 minutes

Considering section 6 of *Police Act 1990* (NSW)

6 Mission and functions of NSW Police Force

(1) The mission of the NSW Police Force is to work with the community to reduce violence, crime and fear.

(2) The NSW Police Force has the following functions—

- (a) to provide police services for New South Wales,
- (b) to exercise any other function conferred on it by or under this or any other Act,
- (c) to do anything necessary for, or incidental to, the exercise of its functions.

(3) In this section—

police services includes—

- (a) services by way of prevention and detection of crime, and
- (b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and
- (c) the provision of essential services in emergencies, and
- (d) any other service prescribed by the regulations.

...

Is the investigation of crime a service NSW Police provide?

To investigate crime is one of the main roles of the NSW Police Force to ensure the safety and security of the community.

Uniformed police are usually will be the first one to attend scene of a crime and if necessary, the matter will be referred to detectives to continue the responsibility for further investigation of the crime.

The police will interview victims, witnesses, and write down the details of the crime and collect physical evidence. Then the victim's need will also be assessed for protection. Protection orders will be put in place to make sure that the victim is protected

Forensic examinations conducted by the police is vital in the criminal investigation process and can impact the outcome at court.

Upon investigation police will give the victim a copy of their statement and will keep the victim informed of the progress of the examination. The victim will be kept informed of the process of investigation and its final outcome.

Police Act 1990 No 47, Sec 6 (2)(b);(3)(a)

AFFIDAVIT OF **15-06-2026**

COURT DETAILS

Court Supreme Court of New South Wales
Division
Registry Sydney
Case number

TITLE OF PROCEEDINGS

Plaintiff In the matter of Insightbox Pty Ltd

FILING DETAILS

Filed for Insightbox Pty Ltd Plaintiff
Filed in relation to Fact Check
Contact name and telephone
Contact email

AFFIDAVIT

Name

Address 490 Pitt Street, Haymarket NSW 2000

Occupation Fact Checker

Date 15 June 2026

I on oath swear/affirm:

1. I am a fact checker employed by Insightbox Pty Ltd (ABN: 16 670 479 875).
2. This affidavit was prepared with the assistance of a supervisor.
3. Artificial intelligence was not used:
 - a. in this Affidavit or any Annexures.
4. The answers to the questions [Annexure A, pages 3-4].

SWORN/AFFIRMED at

Signature of deponent

Name of witness

Address of witness

Appointments and Applications
Department of Communities and Justice
Parramatta Square, 10 Darcy Street Parramatta 2150
Ph (02) 9736 2255 Email: nswja@nswja.org.au

Capacity of witness ~~#[Justice of the peace #Solicitor #Barrister #Commissioner for affidavits #Notary public]~~

And as a witness, I certify the following matters concerning the person who made this affidavit (the **deponent**):

1. ~~#I saw the face of the deponent. [OR, delete whichever option is inapplicable]~~
~~#I did not see the face of the deponent because the deponent was wearing a face covering, but I am satisfied that the deponent had a special justification for not removing the covering.~~
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Signature of witness

Note: The deponent and witness must sign each page of the affidavit. See UCPR 35.7B.

page 1/2

3

This is the annexure marked with the letter "A" referred to in the Affidavit / Statutory Declaration of [REDACTED]

sworn/affirmed/declared before me at [REDACTED] on the day 15 of Feb 2026

One page only.
Page 1 of 2 pages

Public Notary General
Public Notary General
Justice of the Peace in and for the State of NSW

Insightbox Pty Ltd

Annexure A

Monday, 9 March 2026

Public Interest Question

Insightbox Fact Checking

30 minutes

Do NSW Police provide a service?

A service can be roughly defined as an activity which contributes to the welfare of others. NSW police acts as a vital public service by ensuring the safety of society by enforcing the standards of law and order decided on through a social contract between the people and judiciary of New South Wales. NSW Police contributes to the welfare of the people of NSW by protecting them from harm caused both their physical body and property. The value of this service comes from its providing society with the basic human need for safety which then allows us to o focus our attentions on seeking fulfilment and prosperity free from the threat of harm.

Insightbox Pty Ltd

Thursday, 19 March 2026

Public Interest Question

Insightbox Fact Checking

15 minutes

Considering section 6 of *Police Act 1990* (NSW)

6 Mission and functions of NSW Police Force

(1) The mission of the NSW Police Force is to work with the community to reduce violence, crime and fear.

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- (b) the protection of persons from injury or death, and property from damage, whether arising from criminal acts or in any other way, and
- (c) the provision of essential services in emergencies, and
- (d) any other service prescribed by the regulations.

...

Is the investigation of crime a service NSW Police provide?

A service is defined as activity which contributes to the welfare of others. The investigation of crime constitutes a service as it contributes to the betterment of the welfare of society. The service comprises a core component of NSW Polices overall service which is ensuring the safety of the public to live their lives free of harm to their person or property. The investigation of crime is a valuable public service as it reassures the public that the wheels of law and order are in motion working for the general protection of society.